



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
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Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON JANUARY 7, 2025 AT ITS SESSION HALL

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/Presiding Officer
Hon. Jo Madel D. Domalaon	S. B. Member
Hon. Bienvenido D. Ayo, Jr.	-do-
Hon. Luis Lee E. Espeña, Jr.	-do-
Hon. Alice D. Emano	-do-
Hon. Rodolfo E. Diolata	-do-
Hon. Juan D. Ebid	-do-
Hon. Albert D. Destura	-do-
Hon. Antonio J. Emano, Jr.	LnB Pres. /S. B. Member
Hon. Rene Joseph D. Domasian	PPSK Pres./S.B. Member

ABSENT:

Hon. Joseph H. Yap, Jr.	S. B. Member/ on leave
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RESOLUTION NO. 03-2025

Introduced by the council

A RESOLUTION GRANTING OMNIBUS AUTHORITY TO THE MUNICIPAL MAYOR, HON. ROMEO D. DOMASIAN TO ENTER INTO A MEMORANDUM OF AGREEMENT (MOA) WITH THE PROVINCIAL GOVERNMENT OF SORSOGON REPRESENTED BY HONORABLE GOVERNOR JOSE EDWIN HAMOR, FOR THE IMPLEMENTATION OF PROVINCIAL GOVERNMENT'S 7K PROGRAM IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON

WHEREAS, the Sangguniang Bayan is in full support of the 7K program (*Kalinigan, Kagandahan, Kabuhayan, Kadunungan, Katrangkiluhan, Kalusugan, Kalikasan*) of the Provincial Government of Sorsogon;

WHEREAS, the people of Prieto Diaz has seen and been enjoying the benefits of this program such as, but not limited to conduct of monthly tree planting; regular (perpetual) cleaning and maintenance of streets and major thoroughfares; strengthening the tourism industry by improving further all existing tourism destination in the province and develop potential tourism spot as well; provision of free school uniform and supplies; establishment of "Botika ng Bayan" per municipality/city; distribution of farm tools, equipment and machinery; strengthen the campaign on crime prevention through the provision of auxiliary unit and law enforcer's visibility with the goal of achieving zero crime rate in every municipality;

WHEREAS, this collegial body is cognizant that each of the said program provides an individual Memorandum of Agreement every year, being endorsed by the Municipal Mayor, Hon. Romeo Domasian to the Sangguniang Bayan for grant of authority;

WHEREAS, in order to expedite the implementation of the said program in the municipality, the Sangguniang Bayan has decided to grant the Municipal Mayor omnibus authority for the said agreement;

WHEREAS, the Sangguniang Bayan is cognizant that the 2 parties agree to a 60% (Province) - 40% (municipality) sharing scheme of the budgetary requirements for the implementation of the program;

WHEREAS, on motion of Hon. Luis Lee Espeña, Jr., duly seconded by Hon. Juan Ebid;

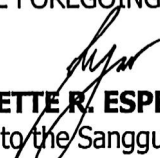
NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to grant omnibus authority to the Municipal Mayor, Hon. Romeo D. Domasian to enter into a Memorandum of Agreement (MOA) with the Provincial Government of Sorsogon represented by Honorable Governor Jose Edwin Hamor, for the implementation of Provincial Government's 7K program for in the municipality of Prieto Diaz, Sorsogon;

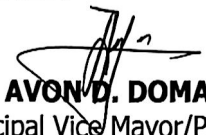
FINALLY RESOLVED, to transmit this resolution to Hon. Romeo Domasian, Municipal Mayor; copy furnished Honorable Governor Jose Edwin Hamor, Capitol Cmpd.; Ms. Gemma Ferrer, Municipal Treasurer; Ms. Linda E. Lim, MBO; Ms. Maribel Aldon, Municipal Accountant and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer

MEMORANDUM OF AGREEMENT

KNOW ALL MEN BY THESE PRESENT:

This Memorandum of Agreement entered into by and between:

The **Provincial Government of Sorsogon** a local government unit existing under Philippine law with office address at Capitol Bldg., Capitol Compound, Sorsogon City, represented by Provincial Governor **EDWIN "BOBOY" B. HAMOR**, hereinafter referred to as the **FIRST PARTY**.

The Local Government of the Municipality of Pto.Diaz, Province of Sorsogon, a government agency created and existing under and by virtue of Republic Act 7160, with principal address at Pto.Diaz Municipal Hall, Pto.Diaz, Sorsogon, Philippines as herein represented by its **Mayor ROMEO D. DOMASIAN**, hereinafter referred to as the **SECOND PARTY**.

WITNESSETH

WHEREAS, the **FIRST PARTY**, a local government unit, is mandated to promote General welfare of the people under Sec.16 of R.A 7160 aka the Local Government Code of the Philippines;

WHEREAS, the **FIRST PARTY** is implementing its 7k Program and one of which is the **KALUSUGAN** Program;

WHEREAS, under the **KALUSUGAN** Program the **FIRST PARTY** will be implementing the "**SIMULA'T KATAPUSAN**" (Alalay/asistensya sa mga bagong aki asin sa pamilya kan nagadan) Program over which the parties hereto shall provide financial assistance to its constituents from birth deliveries to death;

WHEREAS, the **SECOND PARTY**, a local government unit also, serves as the basic political unit mandated to serve as primary planning and implementing unit of the government policies, plans, programs, projects and activities in the community;

WHEREAS, the active participation of the Local Government Units is necessary to achieve its goal for the betterment of the whole Province of Sorsogon;

WHEREAS, the parties agreed to a 60% 40% sharing scheme of the budgetary requirements for the implementation of the **SIMULA'T**

KATAPUSAN Program. Copy of the Budget Allocations requirement is hereto attached as "Annex A".

NOW, THEREFORE, for and in consideration of the above premises and their mutual covenant of the Provincial Government of Sorsogon and of the Local Government of Pto.Diaz, Sorsogon, the parties hereby enter into this Memorandum of Agreement to jointly abide in the following duties and responsibilities:

The parties agreed to a 60% 40% sharing scheme of the budgetary requirements for the implementation of the Program. Copy of the Budget Allocations requirement is hereto attached as "Annex A".

1. Responsibility of the Parties:

a. The Provincial Government of Sorsogon Shall:

1. Provide financial assistance in the amount of PhP 480,000.00 intended for the said program;
2. Shall provide for the manner of utilization of the funds as herein attached as Annex "B";

b. The Local Government of Pto.Diaz shall also provide financial assistance in the amount of PhP 320,000.00 and shall perform the following activities within their jurisdiction, to wit:

1. To conduct the selection and validation of the recipients of the program;
2. To implement the 3,000 and 2,000 pay-out scheme, the 3,000 from the PLGU fund and the 2,000 from the MLGU fund;
3. To give the funds to the qualified beneficiaries;
4. For Simula to conduct pay-out every 28th day of the month, if it falls on a holiday or weekends the pay-out will be scheduled to a prior working date;
5. For Katapusan to conduct pay-out on a daily basis, provided that the documentary requirements are properly complied.
6. To document, photograph and maintain records of the beneficiaries of the project on a monthly basis and furnish the PLGU a copy every 15th day of the succeeding month.

7. To acknowledge receipt of the amount given as financial assistance from the PROVINCIAL GOVERNMENT OF SORSOGON by issuing Official Receipt;
8. To utilize the fund within the 2024 fiscal year and return to the PLGU the unutilized fund;
9. To submit monthly Fund Utilization Report (FUR) to the Provincial Accountant's Office and the 7K Secretariat thru the PPDO every 25th day of the succeeding month with the corresponding beneficiaries.

This agreement shall take effect upon the signing of the approval by parties concerned and shall be renewed upon the consent of all signatories and concerned.

IN WITNESS WHEREOF, the parties hereto affixed their signatures on this _____ at Sorsogon City.

EDWIN "BOBOY" B. HAMOR
For the Provincial Government
of Sorsogon
Passport ID No. P0437130C
Issued by: DFA

ROMEO D. DOMASIAN
For LGU- Pto.Diaz, Sorsogon
ID NO. _____
Issued by : _____

_____ witnesses _____



ACKNOWLEDGEMENT

REPUBLIC OF THE PHILIPPINES)
Province of Sorsogon) S.S
Sorsogon City)

BEFORE ME, a Notary Public, for and in the Province of Sorsogon, this _____ personally the above-named persons representing their respective LGU both are known to me and to me personally known to be the same persons who executed the foregoing instrument and acknowledged to me that the same is their free and voluntary act and deed.

This instrument consisting of three (3) pages including this page where the acknowledgement was written and signed by the parties and their instrumental witnesses in each and every page thereof relates to Memorandum of Agreement.

WITNESS MY HAND AND SEAL this _____ at Sorsogon City, Philippines.

Doc. No. _____;
Page No. _____;
Book No. _____;
Series of 20_____;

;



ANNEX A

MUNICIPALITY: PTO. DIAZ

DURATION: January 1, 2025 to December 31, 2025

TOTAL COST: PHP 800,000.00

- Amount to be downloaded to LGU (60% of total cost)

PHP 480,000.00



- LGU Share (40% of total cost)

PHP 320,000.00



7. The prenatal done from another territorial jurisdiction shall be accepted as a valid supporting document
8. The mother who gave birth to the child shall be the beneficiary of the incentive and must be a holder of the Sorsogon ID issued by the Provincial Government
9. In case of multiple birth deliveries, the benefit shall be provided for each child delivered. (Example: Twin deliveries will be entitled to twice the amount)
10. In the event that the mother and/or the child die during delivery, each shall be accorded with financial assistance as determined by the respective City/Municipal Health Officer and the Civil Registrar.
11. The birth assistance shall be limited up to the 4th birth delivery
12. The deceased must be a holder of the Sorsogon ID issued by the Provincial Government
13. The benefit assistance shall be provided regardless if the death occurred at a health facility or at home
14. The nearest next-of-kin shall be the beneficiary of the death benefit assistance
15. Self-inflicted death shall not be covered by this benefit program
16. The beneficiary must submit a certified true copy of the Death certificate of the deceased

Renewal: Subject to the availability of funds and complete liquidation reports required in the instant Program, additional financial assistance may be entered into by the parties in a separate MOA.